

EXECUTIVE SUMMARY

Cameroon is a republic dominated by a strong presidency. The country has a multiparty system of government, but the Cameroon People's Democratic Movement (CPDM) has remained in power since its creation in 1985. In practice the president retains the power to control legislation. On October 7, citizens reelected CPDM leader Paul Biya president, a position he has held since 1982. The election was marked by irregularities, including intimidation of voters and representatives of candidates at polling sites, late posting of polling sites and voter lists, ballot stuffing, voters with multiple registrations, and alleged polling results manipulation. On March 25, the country conducted the second senate elections in its history. They were peaceful and considered generally free and fair. In 2013 simultaneous legislative and municipal elections were held, and most observers considered them free and fair. New legislative and municipal elections were expected to take place during the year; however, in consultation with the parliament and the constitutional council, President Biya extended the terms of office of parliamentarians and municipal councilors for 12 months, and general elections were expected to take place in fall 2019 or early 2020.

Civilian authorities at times did not maintain effective control over the security forces, including police and gendarmerie.

The sociopolitical crisis that began in the Northwest and Southwest Regions in late 2016 over perceived marginalization developed into an armed conflict between government forces and separatist groups. The conflict resulted in serious human rights violations and abuses by government forces and Anglophone separatists.

Human rights issues included arbitrary and unlawful killings by security forces as well as armed Anglophone separatists; forced disappearances by security forces, Boko Haram, and separatists; torture by security forces and Anglophone separatists; prolonged arbitrary detentions including of suspected Anglophone separatists by security forces; harsh and life-threatening prison conditions; arbitrary or unlawful interference with privacy; violence and harassment targeting journalists by government agents; periodic government restrictions on access to the internet; laws authorizing criminal libel; substantial interference with the right of peaceful assembly; refoulement of refugees and asylum seekers by the government; restrictions on political participation; violence against women, in part due to government inaction; unlawful recruitment or use of child soldiers by Anglophone separatists, government-supported vigilance committees, and Boko Haram; violence or threats of violence targeting lesbian, gay, bisexual, transgender, and intersex (LGBTI) persons, and criminalization of consensual same-sex relations; child labor, including forced child labor; and violations of workers' rights.

Although the government took some steps to identify, investigate, prosecute, or punish officials who committed human rights abuses in the security forces and in the public service, it did not often make public these proceedings, and some offenders, including serial offenders, continued to act with impunity.

Section 1.

Respect for the Integrity of the Person,
Including Freedom from:

**A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR
POLITICALLY MOTIVATED KILLINGS**

There were several reports that the government or its agents committed arbitrary and unlawful killings through excessive use of force in the execution of official duties.

In July, Human Rights Watch reported that, during government operations in 12 villages in the Northwest and Southwest Regions between January and April, government security forces shot and killed more than a dozen civilians, including at least seven persons with intellectual or developmental disabilities who had difficulty fleeing. On May 25, in Menka-Pinyin, Santa Subdivision of the Northwest Region, elements of the Gendarmerie, the 51st Motorized Infantry Brigade, and the Special Operations Group of the National Police carried out a raid on a location believed to harbor Anglophone activists, killing 27 persons, according to official sources. Security forces battling Anglophone secessionists in the Northwest and Southwest Regions allegedly killed two clerics. Anglophone separatists attacked and killed several dozen civilians considered loyal to the central government and members of defense and security forces in these two regions. According to the government's Emergency Humanitarian Assistance Plan, as of June 11, the death toll attributed to separatists within defense and security forces was 84, including 32 members of defense forces, 42 gendarmes, seven policemen, two prison guards, and one Eco-guard, some of whom were mutilated or decapitated and their bodies exhibited on social media. Civilian victims included the following: the

chief of Esukutan in Toko Subdivision of the Southwest Region, murdered on February 5; the divisional officer for Batibo in the

Northwest, abducted on February 11 and subsequently killed; and Ashu Thomas Nkongho, discipline master of the government bilingual high school in Kossala, Meme Division of the Southwest Region, killed on school premises on April 25. Unidentified gunmen killed a local chief in a church and a priest, supposedly because of their alleged opposition to secession by the Northwest and Southwest Regions.

Boko Haram and ISIS-West Africa (ISIS-WA) continued killing civilians, including members of vigilance committees, which were organized groups of local residents cooperating with government forces in the fight against Boko Haram, and members of defense and security forces in the Far North Region. According to the *L'Oeil du Sahel* newspaper, as of June 30, at least 153 civilians and 12 members of defense and security forces had been killed in the attacks.

B. DISAPPEARANCE

Government security forces were widely believed to be responsible for disappearances of suspected Anglophone separatists, with reports of bodies dumped far from the site of killings to make identification difficult. According to credible nongovernmental organizations (NGOs), the government did not readily account for some of the activists arrested in connection with the Anglophone crisis. Family members and friends of the detainees were frequently unaware of the missing individuals' location in detention for a month or more. For example, authorities held incommunicado Ayuk Sisiku Tabe, the "interim president" of the so-called Republic of Ambazonia, along with 46 other Anglophone separatists, from January 29 until late June when they were allowed to meet with their lawyers and the International Committee of the Red Cross (ICRC).

In an August 24 release, Ekombo Favien, vice president of human rights NGO Frontline Fighters for Citizen Interests (FFCI), announced the disappearance of FFCI national president Franklin Mowha. According to the release, Mowha arrived in Kumba, Southwest Region, on August 2 to monitor human rights abuses. He was last seen leaving his hotel room on August 6. Ekombo indicated that authorities had previously targeted Mowha on several occasions because of his human rights reporting.

Boko Haram insurgents kidnapped civilians, including women and children, during numerous attacks in the Far North Region. According to *L'Oeil du Sahel*, as of June 30, at least 51 civilians had been victims of Boko Haram abductions, and some of them remained unaccounted for.

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

Although the constitution and law prohibit such practices, there were reports that security force members beat, harassed, or otherwise abused citizens, including separatist fighters. Amnesty International and Human Rights Watch documented several cases in which security forces severely mistreated suspected separatists and detainees.

Amnesty International reported in July 2017 on the cases of 101 individuals whom security forces allegedly tortured between March 2013 and March 2017 in detention facilities run by the Rapid Intervention Battalion (BIR) and the General Directorate of Counter Intelligence (DGRE). While most of the cases documented involved persons arrested in 2014 and 2015 and allegedly tortured between 2014 and 2016, Amnesty International asserted that the practice continued into 2017. It stated that torture took place at 20 sites, including four military bases, two intelligence

centers, a private residence, and a school. Specific sites named in the report included the BIR bases in Salak, Kousseri, and Kolofata in the Far North Region, and DGRE facilities in Yaounde. As of October the government had not shared results of its internal investigations but claimed it had investigated some, if not all, of the allegations.

Human Rights Watch documented the case of 22-year-old Fredoline Afoni, a thirdyear student at the Technical University of Bambili whom security forces beat to death on January 29. Witnesses told Human Rights Watch that Fredoline was home near Kumbo in the Northwest Region when he received a telephone call requesting that he pick up luggage at a nearby junction. Once at the location, persons dressed in civilian clothes forcefully took him away by truck. A truck belonging to the gendarmerie subsequently drove through the same junction with Fredoline sitting in the back, naked and handcuffed, with signs of having been badly beaten. Individuals reportedly appeared at a relative's home and collected Fredoline's laptop and cell phone. Fredoline's uncle subsequently discovered that he was in gendarmerie custody. The uncle reportedly told Human Rights Watch that he discovered the victim's naked and decaying corpse outside the local mortuary three days later. After a postmortem examination, the medical professional who examined the body told Human Rights Watch that Fredoline died as a result of his beatings.

Social media diffused a video in June showing security force members at the

Cameroon Protestant College of Bali in the Northwest Region forcing two girls to crawl through the mud while referring to them as Ambazonian spies. Media reports indicated that the gendarmes were arrested and placed in detention and were awaiting trial by the military tribunal, but there was no further information on the case.

Press reporting indicated there were cases of rape and sexual abuse by persons associated with the government and separatists in Anglophone regions. For example, there were credible reports that on July 3, during security operations in Bamenda, Northwest Region, first-class soldier Mbita Arthur allegedly raped a female victim he called aside for a routine national identity check. The soldier was arrested, although there was no further information on the case.

During the year the United Nations reported that it received five allegations of sexual exploitation and abuse against peacekeepers from Cameroon deployed in the UN Multidimensional Integrated Stabilization Mission in the Central African Republic (MINUSCA). Three cases alleged sexual exploitation (exploitative relationship, transactional sex), and three cases sexual abuse (rape), one of which involved minors. Several allegations each referred to more than one alleged perpetrator, more than one victim, or both. Investigations both by the United Nations and the government were pending. Interim action by the United Nations was taken in one case. Nine allegations reported previously were pending.

Prison and Detention Center Conditions

Prison conditions were harsh and life threatening.

Physical Conditions: Overcrowding remained a significant problem in most prisons, especially in major urban centers. Officials held prisoners in dilapidated, colonial-era prisons, where the number of inmates was as much as five times the intended capacity. Prisons generally had separate wards for men, women, and children. Authorities often held detainees in pretrial detention and convicted prisoners together. In many prisons toilets were nothing more than common pits. In some cases women benefitted from better living conditions, including improved toilet facilities and less crowded living quarters. Authorities claimed to hold sick

persons separately from the general prison population, but this was often not the case.

According to prison administration officials, the country had 79 operational prisons, with an intended capacity of 17,915 but which held close to 30,000 inmates as of June. For example, the central prison in Ngaoundere, Adamawa Region, was initially designed to accommodate 150 inmates. Successive expansions raised the capacity to 500 inmates. As of June 19, the prison held 1,600 inmates, more than two-thirds of whom had not been convicted of any crime. A third of the inmates were awaiting trial, hearings had begun for another third, and one-third had been convicted.

The quality of food, access to potable water, sanitation, heating, ventilation, lighting, and medical care were inadequate. As a result illness was widespread. Malnutrition, tuberculosis, bronchitis, malaria, hepatitis, scabies, and numerous other untreated conditions, including infections, parasites, dehydration, and diarrhea, were rampant. The number of deaths associated with detention conditions or actions of staff members or other authorities was unknown.

Physical abuse by prison guards and prisoner-on-prisoner violence were problems. Corruption among prison personnel was reportedly widespread. Visitors were at times forced to bribe wardens to be granted access to inmates. Prisoners bribed wardens for special favors or treatment, including temporary freedom, cell phones, beds, and transfers to less crowded areas of the prisons. Due to their inability to pay fines, some prisoners remained incarcerated after completing their sentences or after they had received court orders of release.

Administration: Independent authorities often investigated credible allegations of mistreatment. Visitors needed formal authorization from the state counsel; without authorization, they had to bribe prison staff to communicate with inmates. In

addition visits to Boko Haram suspects were highly restricted. Some detainees were held far from their families, reducing the possibility of visits. Authorities allowed prisoners and detainees to observe their religions without interference.

As in 2017, authorities allowed NGOs to conduct formal education and other literacy programs in prisons. At the principal prison in Edea, Littoral Region, the NGO Christian Action for the Abolition of Torture sponsored a Literacy and Social Reintegration Center that provided primary and lower secondary education to inmates. Because of the sociopolitical unrest in the Southwest Region, Human Rights, a Buea-based civil society organization, and the NGO Operation Total Impact discontinued their formal education and reformation education program in the principal prisons in Buea and Kumba. The central prison in Garoua, North Region, continued to run a full-cycle primary school.

Independent Monitoring: Unlike in the previous year, the government restricted international humanitarian organizations' access to prisoners in official prisons.

For example, as of June authorities had not allowed the ICRC access to its target prisons and detention centers. On July 3, however, the ICRC was able to visit the 47 Anglophone separatists repatriated from Nigeria, and some of the detainees delivered messages through the organization to their families. The National Commission on Human Rights and Freedoms (NCHRF) and the Commissions for Justice and Peace of the Catholic archdioceses also conducted prison visits but were denied access to some detention centers. In January NCHRF members visited prisons in Monatele in the Center Region; Bertoua, Doume, and AbongMbang in the East Region; and Maroua in the Far North Region. The NCHRF reported that it did not have access to some prisons in Yaounde, including those hosting the 47 suspected separatists repatriated from Nigeria. The NCHRF also alleged authorities did not grant access to a victim who was shot and admitted at the Yaounde Emergency Center.

D. ARBITRARY ARREST OR DETENTION

The constitution and law prohibit arbitrary arrest and detention and provide the right to challenge the lawfulness in court of an arrest or detention. The law states that, except in the case of an individual discovered in the act of committing a felony or misdemeanor, the officials making the arrest shall disclose their identity and inform the person arrested of the reason. The law also provides that persons arrested on a warrant shall be brought immediately before the examining magistrate or the president of the trial court who issued the warrant, and that the accused persons shall be given reasonable access to contact their family, obtain legal advice, and arrange for their defense. The law provides that any person who has been illegally detained by the police, the state counsel, or the examining magistrate may receive compensation. On several occasions the government did not respect these provisions.

ROLE OF THE POLICE AND SECURITY APPARATUS

The national police, DGRE, Ministry of Defense, Ministry of Territorial Administration, and, to a lesser extent, presidential guard are responsible for internal security. The Ministry of Defense—which includes the gendarmerie, army, and the army’s military security unit—reports to the Office of the Presidency, resulting in strong presidential control of security forces. The army is responsible for external security, while the national police and gendarmerie have primary responsibility for law enforcement. Historically the gendarmerie has responsibility in rural areas. Increasingly in the Anglophone regions, responsibility for security in the rural areas is left to another security force, the BIR. The BIR falls outside the purview of conventional forces. The national police—which includes public security, judicial, territorial security, and frontier police—reports to the General Delegation of National Security (DGSN), which is under the direct authority of the

presidency. The government took some steps to hold police accountable for abuses of power. Police remained ineffective, poorly trained, and corrupt. Impunity continued to be a problem.

Civilian authorities maintained some control over the police and gendarmerie, and the government had some mechanisms in place to investigate and punish abuse and corruption. The DGSN and gendarmerie investigated reports of abuse and forwarded cases to the courts. Lesser sanctions were handled internally. The DGSN, Ministry of Defense, and Ministry of Justice stated that members of security forces were sanctioned during the year for committing abuses, but few details were known about investigations or any subsequent accountability.

The national gendarmerie and the army have special offices to investigate abuse. The secretary of state for defense and the minister delegate at the presidency are in charge of prosecuting abusers. The minister delegate of defense refers cases involving aggravated theft, criminal complicity, murder, and other major offenses to the military courts for trial.

In March authorities opened an investigation into the case of taxi driver Jean Nga Mvondo, who died a few hours after the Ngousso gendarmerie brigade in Yaounde released him from detention. Pending the outcome of the investigation, on March 23, the secretary of state in charge of the National Gendarmerie (SED) relieved the brigade commander of his duties.

As reported above, on July 24, the minister delegate for defense announced that the gendarmerie in Bamenda, Northwest Region, arrested first class soldier Mbita Arthur and referred him to the office of the Bamenda military court prosecutor. The minister also promised to take disciplinary action against the soldier in accordance with the law. Mbita Arthur allegedly raped a female victim on July 23.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

The law requires police to obtain a warrant before making an arrest, except when a person is caught in the act of committing a crime, but police often did not respect this requirement. The law provides that detainees be brought promptly before a magistrate, although this often did not occur. Police may legally detain a person in connection with a common crime for up to 48 hours, renewable once. This period may, with the written approval of the state counsel, be exceptionally extended twice before charges are brought. Nevertheless, police and gendarmes reportedly often exceeded these detention periods. The law also permits detention without charge for renewable periods of 15 days by administrative authorities such as governors and civilian government officials serving in territorial command. The law provides for access to legal counsel and family members, although police frequently denied detainees access to both. Contrary to the wide-reaching antiterror law, civilian law prohibits incommunicado detention, but it occurred, especially in connection with the sociopolitical unrest in the two Anglophone regions. The law permits bail, allows citizens the right to appeal, and provides the right to sue for unlawful arrest, but these rights were seldom respected. On August 8, Supreme Court Chief Judge Daniel Mekobe Sone commissioned the first members of the Compensation Commission for Illegal Detention, a body created to provide citizens with recourse if they believe they were wrongfully detained.

Arbitrary Arrest: Police, gendarmes, BIR soldiers, and government authorities reportedly continued to arrest and detain persons arbitrarily, often holding them for prolonged periods without charge or trial and at times incommunicado. “Friday arrests,” a practice whereby individuals arrested on a Friday typically remained in detention until at least Monday unless they paid a bribe, continued. There were several reports by media and NGOs that police or gendarmes arrested persons

without warrants on circumstantial evidence alone, often following instructions from influential persons to settle personal scores. There were also credible reports that police or gendarmes arbitrarily arrested persons during neighborhood sweeps for criminals and stolen goods or arrested persons lacking national identification cards, especially in connection with the Anglophone crisis and the fight against Boko Haram.

There were credible reports that authorities held some suspects in the Anglophone crisis for long periods without notifying them of the charges. For example, authorities detained Sisiku Ayuk Tabe, the president of the Anglophone separatist movement, and 46 others incommunicado and without official charge for close to six months. The suspects were arrested in Nigeria on January 5 and extradited to Cameroon on January 25. Defense lawyers considered the arrest and extradition illegal and filed an application for immediate release with the Mfoundi High Court in Yaounde. On August 30, the judge dismissed the application on procedural grounds. The court eventually heard the case on November 1 and delivered a verdict denying the release of Sisiku Ayuk Tabe and the nine other leaders of the Anglophone separatist movement on November 15.

Pretrial Detention: The law provides for a maximum of 18 months' detention before trial, but many detainees waited years to appear in court. No comprehensive statistics were available on pretrial detainees. According to prison authorities, as of June the central prison in Ngaoundere, Adamawa Region, housed approximately 1,600 inmates, two-thirds of whom were pretrial detainees and appellants. Some pretrial detainees had been awaiting trial for more than two years. The increase in pretrial prison populations was due in large part to mass arrests of Anglophone activists and persons accused of supporting Boko Haram, staff shortages, lengthy legal procedures, lost files, administrative and

judicial bottlenecks, including procedural trial delays, corruption, negligence, and court fees.

The NGO Human IS Right documented the case of 24-year-old Beng Pascal Ngong, who was detained without judgement at the Buea Central Prison for more than 26 months. Police arrested Beng in 2015 for allegedly not possessing a national identity card, an offense punishable with imprisonment from three to 12 months, a fine of 50,000 to 100,000 CFA francs (\$85 to \$170), or both. Following a habeas corpus request filed by the NGO Human IS Right, judicial authorities ultimately released Beng on March 21, after more than double the duration of the sentence he would have served had he been prosecuted and convicted. Until his release Beng Pascal had never appeared before a judge.

E. DENIAL OF FAIR PUBLIC TRIAL

The constitution and law ostensibly provide for an independent judiciary, but the judiciary is under and often controlled by the president and, by proxy, the ruling party. Individuals reportedly accused innocent persons of crimes, often due to political motivations, or caused trial delays to settle personal scores. Authorities generally enforced court orders.

Musa Usman Ndamba, the national vice president of the Mbororo Social and

Cultural Development Association (MBOSCUDA), was prosecuted for

“propagation of false information” and “false oath,” although he submitted strong evidence that he was not associated with the offense. He continued to suffer judicial harassment by Baba Ahmadou Danpullo, a businessman and member of the central committee of the ruling CPDM, who pressured the court to continue to hear the case after various instances in which it had been dismissed. On May

11, the Court of First Instance in Bamenda sentenced Usman Ndamba to six months' imprisonment and a fine of 500,000 CFA francs (\$850) after more than 60 hearings that began in 2013. Human rights defenders believed Danpullo used the judicial system to discourage Usman Ndamba from defending the rights of the minority Mbororo community of nomadic cattle herders.

Despite the judiciary's partial independence from the executive and legislative branches, the president appoints all members of the bench and legal department of the judicial branch, including the president of the Supreme Court, and may dismiss them at will. The court system is subordinate to the Ministry of Justice, which in turn is under the president. The constitution designates the president as "first magistrate," thus "chief" of the judiciary, making him the legal arbiter of any sanctions against the judiciary. The constitution specifies the president is the guarantor of the legal system's independence. He appoints all judges, with the advice of the Higher Judicial Council. While judges hearing a case are technically to be governed only by the law and their conscience as provided for by the constitution, in some matters they are subordinate to the minister of justice or to the minister in charge of military justice. With approval from the minister of justice, the Special Criminal Court may drop charges against a defendant who offers to pay back the money he is accused of having embezzled, which essentially renders the act of corruption free of sanctions.

Military courts may exercise jurisdiction over civilians for offenses including the following: offenses committed by civilians in military establishments; offenses relating to acts of terrorism and other threats to the security of the state, including piracy; unlawful acts against the safety of maritime navigation and oil platforms; offenses relating to the purchase, importation, sale, production, distribution, or possession of military effects or insignia as defined by regulations in force; cases

involving civil unrest or organized armed violence; and crimes committed with firearms, including gang crimes, banditry, and highway robbery.

TRIAL PROCEDURES

The constitution and law provide for the right to a fair and public hearing, without undue delay, in which the defendant is presumed innocent, but authorities did not always respect the law. Criminal defendants have the right to be informed promptly and in detail of the charges, with free assistance of an interpreter. Many pretrial suspects were treated as if they were already convicted, frequently held in the same quarters as convicted criminals, and denied visits. Defendants have the right to be present and to consult with an attorney of their choice, but in many cases the government did not respect this right, particularly in cases of individuals suspected of complicity with Boko Haram or Anglophone separatists. When defendants cannot pay for their own legal defense, the court may appoint counsel at the public's expense; however, the process was often burdensome and lengthy, and the quality of legal assistance was poor. Authorities generally allowed defendants to question witnesses and to present witnesses and evidence on their own behalf. Defendants have the right to adequate time and facilities to prepare a defense and not to be compelled to testify or confess guilt. Defendants may appeal convictions. In at least one case, authorities did not give the victim a chance to confront the offender and present witnesses and evidence to support his case.

In August the High Court for Mfoundi in Yaounde allegedly released a person suspected of trafficking in persons who had been in pretrial detention since 2016. The victim, Lilian Mbeng Ebangha, returned from Kuwait in 2015 and filed a lawsuit against her alleged trafficker, a pastor of Shiloh Liberation Ministries International. After preliminary investigations the case was sent to trial in 2016

and thereafter had more than 20 adjournments. Each time a hearing was scheduled in Yaounde, Ebangha travelled from Douala to attend. The alleged offender was released in August or September, but it was unconfirmed whether there was a court decision on the matter. The victim stated that her trafficker had called her to inform her of his release.

POLITICAL PRISONERS AND DETAINEES

There were no reports of newly identified political prisoners or detainees, and no statistics were available on the number of political prisoners. Previously reported political prisoners were detained under heightened security, often in SED facilities.

Some were allegedly held at DGRE facilities and at the principal prisons in Yaounde. The government did not permit access to such persons on a regular basis, or at all, depending on the case.

Former minister of state for territorial administration Marafa Hamidou Yaya, convicted in 2012 on corruption charges and sentenced to 25 years' imprisonment, remained in detention. In May 2016 the Supreme Court reduced the sentence to 20 years. In June 2016 the UN Working Group on Arbitrary Detention issued a decision qualifying Marafa's detention "a violation of international laws" and asked the government to immediately free and compensate him for damages suffered. The United Nations noted there were multiple irregularities in the judicial procedure.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

Citizens and organizations have the right to seek civil remedies for human rights violations through administrative procedures or the legal system; both options,

however, involved lengthy delays. Individuals and organizations may appeal adverse decisions domestically or to regional human rights bodies. There were no reports that the government had failed to comply with civil case court decisions pertaining to human rights. A number of labor rights-related cases involving government entities were ongoing as of the end of August.

PROPERTY RESTITUTION

The government continued to compensate relocated families over the past few years in connection with infrastructure projects, including the Kribi Sea Port and the Yaounde-Douala highway projects. There were no reported developments in the cases of corrupt officials who had misappropriated money the government had earmarked for compensation previously. There was no report of intentional targeting of particular groups for discriminatory treatment.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

Although the constitution and law prohibit arbitrary interference with privacy, family, home, or correspondence, these rights were subject to restriction for the “higher interests of the state,” and there were credible reports police and gendarmes abused their positions by harassing citizens and conducting searches without warrants.

The law permits a police officer to enter a private home during daylight hours without a warrant only if pursuing a person suspected of or seen committing a crime. Police and gendarmes often did not comply with this provision and entered private homes without warrant whenever they wished.

An administrative authority, including a governor or senior divisional officer, may authorize police to conduct neighborhood sweeps without warrants, and this practice occurred.

Police and gendarmes sometimes sealed off a neighborhood, systematically searched homes, arrested persons, sometimes arbitrarily, and seized suspicious or illegal articles. For example, in the early hours of July 10, police and gendarmes conducted a cordon-and-search operation in the neighborhoods of Ndobbo at Bonaberi in the Douala IV Subdivision, Littoral Region, arrested dozens of individuals, and detained those found in possession of, or consuming, narcotics. On July 26, police conducted a similar operation in the neighborhood of Biyem Assi in Yaounde 6 Subdivision. They searched houses, requested residents to produce receipts for appliances found in their possession and in some cases confiscating those for which the occupants could not produce receipts, and arrested dozens of individuals. In both cases security forces detained citizens without national identity cards until their identities could be established. The areas in question have a high concentration of Anglophones, and most of the individuals arrested in the July 10 and 26 incidents were Anglophones. Anecdotal reports suggested that with the protracted insecurity in some regions, authorities often forcefully accessed private communications and personal data by exploiting the telephones and computer devices of targeted individuals, during both cordon-and-search and regular identity-control operations.

On September 28 police and gendarmes conducted raids in various neighborhoods in Yaounde. Police raided neighborhoods with heavy Anglophone populations, setting up temporary checkpoints and requesting citizens to provide identification. Some individuals were required to enter a security vehicle and were brought to local police stations, where their identities were verified once more before being released.

G. ABUSES IN INTERNAL CONFLICT

Killings: There were reports that members of government forces deliberately killed innocent citizens. In July a video widely circulated on social media depicted men wearing military-style uniforms executing two women and two children, including an infant. International media, Amnesty International, and domestic human rights organizations, including the Network of Human Right Defenders in Central Africa (REDHAC), Mandela Center, and New Human Rights Cameroon, attributed the actions portrayed in the video to the military. During a press briefing on July 11, Minister of Communication Issa Tchiroma Bakary stated that the video was “nothing but an unfortunate attempt to distort actual facts and intoxicate the public,” but he promised a government-sponsored investigation into the killings. Subsequently, in an August 10 press release, the minister announced the investigation had led to the arrest of seven military personnel, including Lieutenant Etienne Fobassou, Sergeant Hilaire Cyriaque Bityala, Lance Corporal Didier

Jeannot Godwe Mana, Lance Corporal Tsanga, Private Second Class Barnabas

Donossou, Private S Class Jacobai Jonathan Manasse, and Private First Class

Ghislain Ntieche Fewou. He stated the government had handed over the suspects to judicial authorities for prosecution. There were no reports of further developments.

Human Rights Watch reported that government forces killed civilians in the context of the ongoing Anglophone crisis. Human Rights Watch spoke with witnesses and reported such government operations in 12 villages in the Northwest and Southwest Regions (including Kwakwa, Bole, and Mongo Ndor) between

January and April. Security forces set houses on fire, burning to death at least four elderly women left behind by their relatives at the time of the attack. A 43-

yearold man described to Human Rights Watch how he found his 69-year-old mother's remains after a government operation. His wife and children allegedly ran away, but his mother could not.

A June report by Amnesty International on the crisis in the Northwest and Southwest Regions recounted attacks perpetrated by armed separatists against security forces, particularly gendarmes and police. According to the report, at least 44 security force members were killed between September 2017 and May. In addition Amnesty International reported armed separatists attacked ordinary citizens, including traditional chiefs, teachers, and students. The report also accused government forces of having raided the village of Kombone in the Southwest Region on February 14, leading to casualties among both security forces and armed separatists.

Abductions: Armed activists carried out several abductions in the two Anglophone regions and held noncombatants as hostages, including public officials, teachers, schoolchildren, and traditional leaders. The abductors subsequently freed some of the victims, either after negotiations or payment of ransoms. Others, including Chief Williams Mbanda Njie of Lysoka Village in the Southwest Region and divisional officer for Batiba in the Northwest Region Marcel Namata Diteng, died in captivity. Many of the captives remained unaccounted for.

Physical Abuse, Punishment, and Torture: There were credible reports that members of government forces physically abused and killed prisoners in their custody. In its July report, Human Rights Watch highlighted the case of Samuel Chiabah, popularly known as Sam Soya, whom members of government forces interrogated under harsh conditions and killed, following the killing of two gendarmes by armed separatists at a checkpoint between Bamenda and Belo in the Northwest Region. A video widely circulated on social media featured Sam Soya sitting on the floor and being questioned about the killings, along with one

other suspect. In the video Sam Soya could be heard crying in agony and denying participation in the killings. Photographs were released on social media that showed members of security forces in uniform using a bladed weapon to slice open Sam Soya's neck and the leg of the other man, both of whom were lying face down on the floor and in handcuffs.

In July human rights lawyer Felix Agbor Nkongho Balla reported an incident in which guards at the Yaounde Kondengui maximum security prison abused 18 Anglophone detainees who had been transferred from the Buea Central Prison and the SED. He indicated that prison guards kept the detainees in tight chains and brutally beat them, repeatedly referring to them as Ambazonians. In solidarity with the victims, other Anglophone detainees staged a violent protest. The prison registrar allegedly told the inmates that he had received orders from his hierarchy to keep the detainees in chains. In an attempt to resolve the tension, after long hours of negotiations, the prison registrar removed the chains and the situation returned to normal.

Child Soldiers: (see section 6, Children)

Other Conflict-related Abuse: There were reports that armed separatists perpetrated attacks on health-care facilities and personnel. In an August 17 letter to health workers of the Northwest and Southwest Regions, Minister of Health Andre Mama Fouda highlighted some of the casualties. These included the killings of the heads of Njoh-Etu and Kob integrated health centers in Mbengwi, Northwest Region, arson attacks on the Bamuck Ad Lucem health center and Mbonge medicalized health center, the killing of a security guard, and armed attacks on the Bamenda regional hospital's ambulance during which a nurse sustained injuries. There were also reports the military threatened and perpetrated attacks on health-care facilities and workers suspected of having provided care to separatists.

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF SPEECH AND PRESS

The law provides for freedom of expression, including for the press, but the government often restricted this right.

Freedom of Expression: Government officials penalized individuals or organizations that criticized or expressed views at odds with government policy. Individuals who criticized the government publicly or privately frequently faced reprisals. On several occasions the government used the law requiring permits or government notification of public protests to stifle discourse, and many civil society and political organizations reported increased difficulty in obtaining approval to organize public gatherings. The government attempted to impede criticism by monitoring political meetings.

During the year the divisional officer for Yaounde V banned public conferences that Hilaire Kanga, an elections expert, intended to organize at Felydac Hotel on February 15 and June 13 to address the issues of voter registration and peaceful transition. The divisional officer claimed the event was likely to disturb public order.

In September the senior divisional officer for Mfoundi, which encompasses the greater Yaounde area, pressured Hilton Hotel management to cancel a symposium entitled “Digital Rights and Elections in Cameroon,” organized by Paris-based Internet without Borders and Lagos-based Paradigm Initiative, days before it was to take place. Eventually, organizers secured a different hotel without any difficulty.

On June 15, authorities prevented the opposition party, the Cameroon Renaissance

Movement (CRM), from presenting a documentary on presidential candidate Maurice Kamto. The CRM booked Massago Hotel in Yaounde as the venue for the event. Hotel management asked CRM leaders to leave the premises a few hours before the beginning of the documentary showing, allegedly following intimidation and threats from authorities.

Press and Media Freedom: Independent media was active and expressed a wide variety of views, although there were restrictions especially on editorial independence, in part due to stated security concerns related to the fight against Boko Haram and the crisis in the two Anglophone regions. Journalists reported practicing self-censorship to avoid repercussions for criticizing the government, especially on security matters. According to the 2018 Press Freedom Index by Reporters without Borders, authorities imposed a climate of fear and self-censorship on media practitioners. Journalists faced significant hurdles, some of which led to exorbitant fines, and in some cases, jail terms.

According to the Committee to Protect Journalists, at least seven journalists were in prison. One was Thomas Awah Junior, who was arrested in Bamenda, Northwest Region, on January 2. He wrote for the monthly *Aghem Messenger* magazine and was sentenced to 11 years in prison on May 25 for acts of terrorism against the nation, secession, revolution, and propagation of disinformation through digital means. Awah Junior was incarcerated at Kondengui Central Prison in Yaounde. Pictures of a severely emaciated Awah were widely circulated on social media in September. At the end of September, he was transported to a hospital in Yaounde to be treated for tuberculosis and pneumonia.

Violence and Harassment: Police, gendarmes, and other government agents arrested, detained, physically attacked, and intimidated journalists for their reporting.

As in the previous year, authorities arrested journalists in connection with their reporting on the Anglophone crisis. According to reports by credible organizations, including the Committee to Protect Journalists, on March 20, police arrested Akumbom Elvis McCarthy, a news broadcaster for Abakwa FM Radio, a privately owned media outlet based in Bamenda, Northwest Region. McCarthy was allegedly taking pictures of police harassing taxi drivers. He reported in *Pidgin English* for the Media House, which also publishes news on its Facebook page. Judicial police detained the news broadcaster for three weeks before referring him to the military tribunal. The tribunal decided to remand McCarthy into custody for a renewable six-month period while police investigated claims that he reported separatist propaganda.

Censorship or Content Restrictions: Based on a 1990 law on social communication, the Ministry of Communication requires editors to deposit two signed copies of their newspapers within two hours after publication. Journalists and media outlets practiced self-censorship, especially if the National

Communication Council (NCC) had suspended them previously. The NCC issued warnings and suspensions during the year. It declared that radio and television broadcasts of political debates during the period of March 10-24 were suspended, alleging that such discussions might cause conflict ahead of the March 25 senate election. It later clarified that this directive applied only to state-owned media outlets. Magic FM, a private media outlet, decided to broadcast its Magic Attitude political discussion program. Galaxy FM, another private media outlet, also

continued broadcasting political discussion shows through its popular Frenchlanguage political program, *Au Coeur de la Republique*.

On March 15, the NCC issued eight separate decisions, warning or suspending journalists, media outlets, and programs for one to three months. Most were sanctioned for publishing statements deemed unfounded and offensive, which was considered a breach of professional ethics in mass communication. The media outlets included WB1 Radio, L'Orphelin, Horizon Plus, l'Essentiel du Cameroon, and Watch Dog Tribune. In all cases the alleged breaches occurred in 2017.

Libel/Slander Laws: Press freedom is further constrained by strict libel laws. These laws authorize the government, at its discretion and the request of the plaintiff, to criminalize a civil libel suit or to initiate a criminal libel suit in cases of alleged libel against the president or other high government officials. Such crimes are punishable by prison terms and heavy fines. The libel law places the burden of proof on the defendant. The government contended libel laws were aimed at safeguarding citizens whose reputations could be permanently damaged by defamation. There were no reports the government or public figures used laws against libel or slander to restrict public discussion during the year.

INTERNET FREEDOM

According to Internet World Stats (IWS), there were 6,128,422 Internet users in December 2017, representing penetration rates of 24.8 percent. There are currently no credible reports that the government monitored private online communications without appropriate legal authority. The government, however, has repeatedly disrupted access to the internet.

The country experienced its first internet shutdown in January 2017, after Anglophone teachers, lawyers, and students went on strike over alleged social bias in favor of Francophones. The government issued a countrywide internet shutdown, which lasted 93 days. Educational, financial, and health-care institutions as well as businesses that relied on internet access were stunted. International bodies applied pressure to the government to restore internet access. Despite internet access being restored in April 2017, there were continuing reports of network instability.

In October 2017 the government effected a second internet blockade, targeting social media and apps such as WhatsApp and Facebook. This continued to affect the country economically, and many citizens were forced to travel back and forth to regions with internet access for business or information.

ACADEMIC FREEDOM AND CULTURAL EVENTS

Although there were no legal restrictions on academic freedom or cultural events, state security informants reportedly continued to operate on university campuses.

There were a few reports of security personnel disrupting student extracurricular activities.

B. FREEDOM OF PEACEFUL ASSEMBLY AND ASSOCIATION

The government limited and restricted freedoms of peaceful assembly and association.

FREEDOM OF PEACEFUL ASSEMBLY

Although the law provides for freedom of peaceful assembly, the government often restricted this right. The law requires organizers of public meetings,

demonstrations, and processions to notify officials in advance but does not require prior government approval of public assemblies, nor does it authorize the government to suppress public assemblies that it has not approved in advance. Nevertheless, officials routinely asserted the law implicitly authorizes the government to grant or deny permission for public assemblies. The government often refused to grant permits for gatherings and used force to suppress assemblies for which it had not issued permits. Authorities typically cited “security concerns” as the basis for deciding to block assemblies. The government also prevented civil society organizations and political parties from holding press conferences. Police and gendarmes forcibly disrupted meetings and demonstrations of citizens, trade unions, and political activists throughout the year, arrested participants in unapproved protests, and blocked political leaders from attending protests.

On March 9, in Yaounde, police arrested approximately 20 women who participated in a rally, holding up a banner that read, “Stand Up for Cameroon.” According to the organizers of the rally, including Edith Kabang Walla, the president of the Cameroon People’s Party (CPP), the event was aimed to call attention to the deteriorating sociopolitical situation in the country. Police released the women after keeping them for a few hours at the judicial police’s regional headquarters.

Authorities also banned some political rallies. In April the divisional officer of Fokoue in Menoua Division, West Region, banned a meeting meant to encourage voter registration by the CRM opposition party. The CRM claimed they notified

the divisional officer that they were organizing an event on April 11. This event would have been 10th in a series organized in conjunction with Elections Cameroon, the organization that oversees and administers elections, to encourage more persons to register to vote. The divisional officer initially told CRM leaders the meeting might not be authorized because April 11 was a market day. On April 9, he reportedly changed his mind and instead referred CRM's leaders to the mayor, whom he said had control over the market place. Organizers said they had contacted the mayor, who said she had planned to conduct a tax collection exercise in the market that day and turned down the request. Further, in June the mayor of Bagangte banned a rally by the CRM at the local ceremonial ground and reportedly justified his decision by saying that the ceremonial ground was meant only for exceptional events and official ceremonies. CRM officials said the ruling CPDM held a meeting at the venue a few days earlier. Authorities also banned rallies by the CRM in Baham and Bandjoun in the West Region.

FREEDOM OF ASSOCIATION

The constitution and law provide for freedom of association, but the law also limits this right. On the recommendation of the senior divisional officer, the Ministry of Territorial Administration may suspend the activities of an association for three months on the grounds that the association is disrupting public order. The minister may also dissolve an association if it is deemed a threat to state security. National associations may acquire legal status by declaring themselves in writing to the ministry, but the ministry must explicitly register foreign associations and religious groups. The law imposes heavy fines for individuals who form and operate any such association without ministry approval. The law prohibits organizations that advocate a goal contrary to the constitution, laws, and

morality, as well as those that aim to challenge the security, territorial integrity, national unity, national integration, or republican form of the state.

Conditions for recognition of political parties, NGOs, or associations were complicated, involved long delays, and were unevenly enforced. This resulted in associations operating in legal uncertainty, their activities tolerated but not formally approved.

Unlike in 2017 the government did not ban any organizations during the year. On July 18, however, Minister of Territorial Administration Paul Atanga Nji unilaterally designated three political figures as spokespersons for three opposition political parties, disregarding these parties' own hierarchies and internal elections. The minister stated the three parties, the Cameroon People's Party (CPP), the

Union of the Peoples of Cameroon (UPC), and the African Movement for a New Independence and Democracy (Manidem), were suffering from persistent internal crises. He urged administrative command officers nationwide to authorize only events organized by the appointees. On July 20, all three appointed leaders joined 17 other nominally "opposition" leaders to rally with their parties behind President Biya for the October 7 presidential election.

C. FREEDOM OF RELIGION

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT

Although the constitution and law provide for freedom of internal movement, foreign travel, emigration, and repatriation, at times the government restricted

these rights. The government worked with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations to provide protection and assistance to refugees, asylum seekers, stateless persons, and other persons of concern. The government, however, sometimes failed to respect its obligations under relevant international laws. There were instances where it forcibly returned asylum seekers to their countries and did not provide humanitarian organizations such as the United Nations access to internally displaced persons.

In-country Movement: Using minor infractions as a pretext, police and gendarmes at roadblocks and checkpoints in cities and on most highways often extorted bribes and harassed travelers. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. Authorities restricted movements of persons and goods, including motorbikes, in the Northwest and Southwest Regions and some parts of the East, Far North, and West Regions, sometimes for legitimate security reasons, sometimes in a deliberate attempt to harass and intimidate the local population.

On September 28 and 29, the Northwest and Southwest regional governors issued press releases indicating there would be broad limitations on movement from one subdivision to another for 48 hours from September 30 through October 1. This effort was intended to limit any violence associated with October 1, the selfdeclared independence day of Ambazonia.

Internally Displaced Persons (IDPs)

Several hundred thousand persons abandoned their homes in some localities of the

Northwest and Southwest Regions because of the sociopolitical unrest. Estimates of IDPs varied depending on the source, with the government estimating 74,994 IDPs as of June, while the United Nations estimated 350,000 IDPs from the

Northwest and Southwest Regions as of September. As of August 31, more than 227,000 persons were internally displaced in the Far North Region, driven from their homes by conflict perpetrated by Boko Haram and the ISIS-WA, according to UNHCR estimates.

In May the United Nations released an Emergency Response Plan for the Anglophone crisis, appealing for more than \$15 million to respond to the need for shelter, relief items, sanitation, education, food security, health, and protection of 160,000 persons they estimated were affected by the conflict at the time. In mid-June the government released a separate Emergency Humanitarian Action Plan, which requested nearly \$23 million to assist approximately 75,000 IDPs over 18 months, focusing on humanitarian assistance for a period of three months and early recovery for 15 months. The government, however, did not provide humanitarian NGOs or international organizations access to IDPs in the Anglophone regions. Although the government made some effort to provide urgently needed assistance to crisis-affected populations, its coordination with the international humanitarian community in the Northwest and Southwest Regions was not forthcoming.

PROTECTION OF REFUGEES

Refoulement: The government stated there was no official policy of forcibly repatriating refugees. As in the previous year, however, UNHCR and NGOs reported cases of forced returns of asylum seekers, mostly of Nigerians. According to UNHCR, authorities forcibly returned 800 Nigerian refugees from

Cameroon as of July 31. In 2017 UNHCR reported 4,400 known cases of refoulement.

The most recent high-profile case of refoulement took place in the Far North Region. On August 2, UNHCR expressed concern over the death of six Nigerian asylum seekers, including three children, who were victims of the blast from an improvised explosive device on July 29. According to UNHCR, 12 asylum seekers were being forcibly returned to Banki, Nigeria, in a Multinational Joint Task Force truck, which struck the device in Homaka, in the Mayo Sava Division. In addition to the six asylum seekers killed, six others along with six Cameroonian soldiers were injured.

Access to Asylum: The laws provide for granting asylum or refugee status, and the government has established a system of providing protection to refugees. UNHCR continued to provide documentation and assistance to the refugee population. UNHCR and the government continued to conduct biometric verification and registration of refugees, including of those not living in refugee camps. Nevertheless, local authorities did not always recognize these documents as official, which prevented refugees from travelling and engaging in business activities. As of September the country reported 696,097 persons of concern to UNHCR, including 246,131 Central Africans and 98,590 Nigerian refugees in rural areas; 18,447 Central African and 1,914 Nigerian refugees living in urban areas; and 6,399 Central African and 27 Nigerian asylum seekers living in urban areas.

Access to Basic Services: Like their rural host country inhabitants only more so, most refugees had limited access to health care, education, and employment opportunities. Access to these services varied according to the location of the refugees, with those in camps receiving support through humanitarian organizations, while refugees living in host communities faced difficulty receiving services. Visiting the East Region in June, Deputy UNHCR Commissioner for Operations George Okoth-Obbo remarked that refugees from the Central African Republic (CAR) urgently needed basic assistance, especially food, health care, and livelihood opportunities. He noted that refugees were compelled by their situation to adopt negative coping mechanisms, such as stealing and engaging in prostitution.

Durable Solutions: As of August UNHCR and the governments of Cameroon and Nigeria had not started the voluntary repatriation of the more than 99,000 Nigerians refugees in Cameroon as agreed upon under the 2017 tripartite agreement. In June UNHCR carried out return intention surveys using a sample of 4,000 CAR refugees, which indicated that 24 percent of those surveyed would be interested in going back home, while 74 percent would prefer local integration as a durable solution.

Temporary Protection: The government provided temporary, unofficial protection to individuals who may not qualify as refugees, extending this protection to hundreds of individuals during the year, including third-country nationals who had fled violence in CAR. Due to their unofficial status and inability to access services or

support, however, many of these individuals were subject to harassment and other abuses.

Section 3.

Freedom to Participate in the Political Process

The law provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage. President Biya and the majority CPDM party, however, exerted strong influence over key elements of the political process, including the judiciary and Elections Cameroon (ELECAM), the election organizing body.

Elections and Political Participation

Recent Elections: In the senate and presidential elections held during the year, the

CPDM garnered the majority of votes, except in the Northwest, where it lost to the Social Democratic Front (SDF). The CPDM remained dominant in state institutions, partially due to strategic redrawing of voter districts, use of government resources for campaigning, interference with the right of opposition parties to organize and publicize views during electoral campaigns, and privileges associated with belonging to the ruling party.

The country conducted a presidential election on October 7, against the backdrop of protracted sociopolitical unrest in the two Anglophone regions and insecurity in the Far North due to attacks by Boko Haram and ISIS-WA. Eight candidates took part in the election; a ninth dropped out just before election day to support a

rival opposition candidate. The election was marred by irregularities, including intimidation of voters and representatives of candidates at polling sites, late posting of polling sites and voter lists, ballot stuffing, voters with multiple registration, and a lack of transparency in the vote tallying process. In the countdown to the election, government-sponsored media outlets CRTV and Cameroon Tribune produced three times as much programming for the president as for the other eight candidates; in addition the ruling party violated the electoral code by blanketing cities with larger than regulation-sized campaign posters. While not illegal under law, government workers and financial resources were committed to supporting the incumbent's campaign. President Biya was re-elected with 71.28 percent of votes cast.

On March 25, the country held its second senate elections. The ruling CPDM won 63 of the 70 elected seats, while the opposition SDF won seven elected seats. The president, in accordance with the constitution, appointed an additional 30 senators, including 24 from the CPDM, two from the National Union for Democracy and Progress (UNDP), and one each from four other nominal opposition parties, including Union of the People of Cameroon (UPC), National Alliance for Democracy and Progress (ANDP), Movement for the Defense of the Republic

(MDR), and Cameroon National Salvation Front (FSNC). Overall, seven political parties were represented in the senate. The March 25 senate elections were considered peaceful and within the boundaries of the legal framework that heavily favors the ruling party.

In 2013 the country held simultaneous legislative and municipal elections, with 29 parties participating in the legislative elections and 35 in the municipal elections. The CPDM won 148 of 180 parliamentary seats and 305 of 360 municipal council positions. New legislative and municipal elections were expected during the year.

In July the parliament adopted, and the president promulgated, a law to extend the term of office of members of the National Assembly by one year. On July 11, the president signed a decree extending the term of office of municipal councilors for 12 months, effective from October 15.

Political Parties and Political Participation: As of September the country had 305 registered political parties. Membership in the ruling political party conferred significant advantages, including in the allocation of key jobs in state-owned entities and the civil service. The president appoints all ministers, including the prime minister, the governors of each of the 10 regions, and important lower-level members of the 58 regional administrative structures. The president also appoints 30 of the 100 senators, and most of the appointees were from the ruling party.

Human rights organizations and opposition political actors considered the drawing of voter districts and distribution of parliamentary or municipal councilors' seats unfair, stating that it is not fair to begin with and does not take changes in population into account. Consequently, smaller districts sometimes were allocated more seats than more populated constituencies. Managers of state-owned companies and other high-level government officials used corporate resources to campaign for candidates sponsored by the ruling party in both senate and presidential elections to the detriment of the other candidates. Traditional rulers, who receive salaries from the government, openly declared their support for President Biya prior to the presidential election. Further, authorities frequently sought excuses not to grant opposition parties permission to hold rallies and meetings, while the ruling CPDM held meetings at will.

Participation of Women and Minorities: No laws limit participation of women or members of minorities in the political process. The law provides that lists of candidates for legislative and municipal elections should take into account the

sociological components of the constituency, including gender. Cultural and other factors, however, reduced women's political participation compared to that of men.

Women remained underrepresented at all levels of government. Two women submitted their candidacy for the October 7 presidential election, but neither met the requirements. Women occupied 26 of 374 council mayor positions; 81 of 280 parliamentary seats; 11 of 63 cabinet positions; and other senior level offices, including territorial command and security and defense positions. With the voting age set at 20, youth older than age 18 and younger than 20 are not allowed to vote. The minority Baka, a nomadic Pygmy people, were not represented in the senate, national assembly, or higher offices of government.

Section 4.

Corruption and Lack of Transparency in Government

The law provides criminal penalties for corruption by officials, but the government did not implement the law effectively and often used it to settle political scores. The penal code identifies different offenses as corruption, including influence peddling, involvement in a prohibited employment, and nondeclaration of conflict of interest. Reporting of corruption is encouraged through exempting whistleblowers from criminal proceedings. Corruption in official examinations is punishable by up to five years' imprisonment, fines up to two million CFA francs (\$3,400), or both. During the year the National Anti-Corruption Commission (CONAC) instituted a toll-free number to encourage citizens to denounce acts of corruption of which they were victims or witnesses. In addition there were a number of organizations under a common platform known as the National Platform of Cameroonian Civil Society Organizations, which under the 2018 Finance Law was provided a budget of 150 million CFA francs (\$255,000). The funds were to permit the organization

to monitor the implementation of projects by government entities to confirm that resources disbursed are used appropriately. Nevertheless, corruption remained pervasive at all levels of government. The judiciary was not always free to independently investigate and prosecute corruption cases.

Corruption: The government continued Operation Sparrow Hawk, which was launched in 2006 to fight corruption, including embezzlement of public funds. As in the previous year, the Special Criminal Court (SCC) opened new corruption cases and issued verdicts on some pending cases. On May 4, the SCC placed Emmanuel Lebou, Hamadou Haman, and Aïssatou Boullo Bouba in pretrial detention at Yaounde Central Prison. Authorities accused the three officials from the ministries of finance and communication of fraudulent manipulation of government payrolls, including payments of fictitious salaries and other allowances, which resulted in losses worth hundreds of millions of CFA francs (several thousand dollars). In August the SCC delivered its verdict in the prosecution case against Doumana Louis Roger, the former transport delegate for the Northwest Region, and Ayafor Mefor Quita Fozo, a contractor with the Ministry of Transport. They were under prosecution since 2016 for misappropriating fiscal revenues at the Northwest Regional Delegation of Transport in Bamenda. The accused were sentenced to 15 and 10 years in prison, respectively, and were required to pay jointly more than 156 million CFA (\$265,000) to the public treasury.

Financial Disclosure: The constitution requires senior government officials, including members of the cabinet, to declare their assets, but a law passed to implement this provision had itself never been implemented.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups investigated and published findings on human rights cases. Overturning an earlier decision not to allow them back in the country, the government issued visas to allow Amnesty International and Human Rights Watch personnel to return to present their reports on human rights abuses to the government and to hear its views. As in previous years, however, government officials impeded the effectiveness of many local human rights NGOs by harassing their members, limiting access to prisoners, refusing to share information, and threatening violence against NGO personnel. Human rights defenders and activists received anonymous threats by telephone, text message, and email. The government took no action to investigate or prevent such occurrences. The government criticized reports from international human rights organizations, including Amnesty International, Human Rights Watch, and the International Crisis Group, accusing them of publishing baseless accusations with the intention of discrediting the government and military. Despite these restrictions, numerous independent domestic human rights NGOs continued operations to the best of their ability, although many reported that government threats and intimidation limited their ability to operate in the country.

There were several reports of intimidation, threats, and attacks aimed at human rights activists, including members of the Network of Human Rights Defenders in Central Africa (REDHAC), Nouveaux Droits de l'Homme (NDH), the Mandela Center, and Front Line Fighters for Citizens' Interests (FFCI), among others.

FFCI executive president Franklin Mowha was reported missing as of August 6 while he was on a business trip to the Southwest Region. FFCI officials and Mowha's family members alleged that authorities were informed but failed to investigate the case. As of late October, his family members did not have any information concerning his whereabouts and feared he might have been killed.

Government Human Rights Bodies: The National Commission on Human Rights and Freedoms (NCHRF) is an independent, government-funded institution for consultation, monitoring, evaluation, dialogue, concerted action, promotion, and protection of human rights. The NCHRF was established by a 1990 presidential decree and was subsequently given more powers following the passage of a 2004 law. The NCHRF, however, is limited to making recommendations to competent authorities and can take no action itself. The commission publishes yearly reports on the human rights environment and may engage in research, provide education, coordinate actions with NGOs, and visit prisons and detention sites. NGOs, civil society, and the general population considered the NCHRF dedicated and effective, albeit inadequately resourced and with insufficient ability effectively to hold human rights violators to account. Its budget was far smaller than that of most other agencies with comparable status, such as the National Anti-Corruption Commission and Election Cameroon.

The National Assembly's Constitutional Laws, Human Rights and Freedoms, Justice, Legislation, Regulations, and Administration Committee was adequately resourced and reviewed the constitutionality of proposed legislation, but it was not an effective check on the ruling party's initiatives. The parliament generally failed to address the Anglophone crisis, resulting in a protest by opposition Social Democratic Front representatives during the March ordinary session of parliament.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law criminalizes rape of men and women and provides penalties of between five and 10 years of imprisonment for convicted rapists. Police and courts, however, rarely investigated or prosecuted rape cases, especially since victims often did not report them. The law does not address spousal rape.

The law does not specifically prohibit domestic violence, although assault is prohibited and punishable by imprisonment and fines.

Female Genital Mutilation/Cutting (FGM/C): The law protects the bodily integrity of persons, and the 2016 penal code prohibits genital mutilation of all persons. Whoever mutilates the genitals of another person is subject to a prison sentence of from 10 to 20 years, or imprisonment for life if the offender habitually carries out this practice for commercial purposes or the practice causes death. FMG/C remained a problem, but its prevalence remained low. As in the previous year, children were reportedly subjected to FGM/C in isolated areas of the Far North, East, and Southwest Regions and among the Choa and Ejagham ethnic groups.

According to the Minister of Women's Empowerment and the Family, the government fully adopted a UN General Assembly resolution on the intensification of the global action aimed at eliminating FGM/C. For more than 10 years, the government has carried out initiatives to end FGM/C. These include granting support for the socioeconomic reconversion of male and female excision

practitioners and creating local committees to fight against the phenomenon in areas of high prevalence, such as the Southwest and Northern Regions.

Other Harmful Traditional Practices: Widows were sometimes forcibly married to one of their deceased husband's relatives to secure continued use of property left by the husband, including the marital home. To protect women better, including widows, the government included provisions in the 2016 penal code outlawing the eviction of a spouse from the marital home by any person other than the other spouse.

Sexual Harassment: The law prohibits sexual harassment. Offenders can be imprisoned for periods of six months to one year and may be fined between 100,000 and one million CFA francs (\$170 and \$1,700). If the victim is a minor, the penalty can be between one to three years in prison. If the offender is the victim's teacher, they may be sentenced to between three and five years in prison. Despite these legal provisions, sexual harassment was widespread, and there were no reports that anyone was fined or imprisoned for sexual harassment.

Coercion in Population Control: There were no reports of coerced abortion or involuntary sterilization.

Discrimination: The constitution provides for the same legal status and rights for women and men; in practice, however, women did not enjoy the same rights and privileges as men. Although local government officials including mayors claimed women had access to land in their constituencies, the overall sociocultural practice of denying women the right to own land, especially through inheritance, was prevalent in most regions. The government did not implement any official discriminatory policy against women in such areas as divorce, child custody, employment, credit, pay, owning or managing business or property, education, the judicial process, and housing. Although women and men have equal employment

rights, fewer women occupied positions of responsibility. Furthermore, anecdotal reports suggest some gender discrimination occurred in places of employment, especially in the private sector.

Children

Birth Registration: Children derive citizenship through their parents, and the responsibility to register birth falls upon parents. Many births go unregistered because children are not always born in health facilities, and many parents face challenges in reaching local government offices.

Education: The law provides for tuition-free compulsory primary education but does not set an age limit. The law punishes any parent with sufficient means who refuses to send his or her child to school with a fine between 50,000 to 500,000 CFA francs (\$85 and \$850). The punishment is imprisonment from one to two years in cases in which the offense is repeated. Children were generally expected to complete primary education at age 12. Secondary school students had to pay tuition and other fees in addition to buying uniforms and books. This rendered secondary education unaffordable for many children.

During the year numerous separatist attacks on the education sector in the Southwest and Northwest Regions, including arson attacks on school facilities and physical assaults on administrative staff, faculty and students, disrupted the normal operation of schools. Many students and teachers were absent during the 2017-18 school year. According to estimates by the UN Office for the Coordination of Humanitarian Affairs (OCHA), 42,500 children were still out of school as of May.

In June, UNICEF reported that at least 58 schools in the Northwest and Southwest

Regions had been damaged since the beginning of the crisis in 2016. Human Rights Watch documented 19 threats or attacks on schools and 10 threats or attacks on education personnel.

In September individuals believed to be Anglophone separatists perpetrated a series of attacks aimed at disrupting the start of the 2018-19 school year in certain localities of the Northwest and Southwest Regions. During the night of September 1, the headmaster of the Bamali primary school in Ngoketunjia Division in the Northwest Region was killed. On September 3, separatists abducted six students from the Presbyterian Girls Secondary School in Bafut, Mezam Division in the Northwest Region, along with their principal. They later released the students and principal, who had been subjected to torture. On September 4, a dozen individuals stormed a high school in Kumbo, Bui Division, in the Northwest Region and vandalized the administrative building, forcing teachers and students to run for safety. On the same day, St Joseph's Secondary School in Fako Division in the Southwest Region was attacked.

Child Abuse: The law prohibits various forms of child abuse, including but not limited to assault, indecency, kidnapping, forced labor, rape, sexual harassment, and cloud on parentage, which refers to a situation where one parent refuses to disclose the identity of the other parent to the child. Penalties for the offenses range from 10,000 CFA francs (\$17) for forced labor to imprisonment for life in the case of assault leading to death or grievous harm. Despite these legal provisions, child abuse remained a problem. Children continued to suffer corporal punishment, both within families and at school. In addition Boko Haram continued to abduct children and used them as suicide bombers. Press reports cited cases of child rape and the kidnapping of children for ransom. In its April 20 edition, *Mutation Daily* reported that Réseau National des Associations de Tantines (RENATA), an association working with girls who have become mothers due to

early pregnancy, had received 18 reports of sexual abuse of minors since January.

Early and Forced Marriage: The minimum legal age for marriage is 18. Despite the law, according to UNICEF's March 2018 child marriage data, 31 percent of women between the ages of 20 and 24 were married before they turned 18, and of these, 10 percent were married before they turned 15. The law punishes anyone who compels an individual to marry with imprisonment of from five to 10 years, and with fines between 25,000 and one million CFA francs (\$42.50 to \$1,700). By law mitigating circumstances may result in a reduction in punishment, but the final penalty may not be less than a two-year prison sentence. The court may also take custody from parents who give away their underage children in marriage. Despite these legal provisions, a number of families reportedly tried to marry off their girls before age 18. To tackle the issue, the Ministry of Women's Empowerment and Family (MINPROFF) organized sensitization campaigns to warn of the problems of early and forced marriages. MINPROFF conducted these campaigns nationally around major commemorative days, such as the International Day of the Girl Child and International Women's Day. At the local level, MINPROFF established women's empowerment centers in most divisions where grassroots sensitization activities took place.

Sexual Exploitation of Children: The law prohibits the commercial sexual exploitation of children, including child pornography. A conviction, however, requires proof of a threat, fraud, deception, force, or other forms of coercion. Penalties include imprisonment of between 10 and 20 years and a fine of between 100,000 and 10 million CFA francs (\$170 to \$17,000). The law does not specifically provide a minimum age for consensual sex. According to anecdotal reports, children younger than age 18 were exploited in commercial sex, especially by restaurant and bar promoters, although no statistics were available.

Child Soldiers: The government did not recruit or use child soldiers, but government-affiliated civil defense forces employed child soldiers. Boko Haram continued to use child soldiers, including girls, in its attacks on civilian and military targets. There were also some reports that Anglophone separatists in the Southwest and Northwest Regions used children to combat government defense and security forces. In presenting the government humanitarian emergency action plan in July, the prime minister stated that separatists were recruiting children into their ranks and forcing them to fight after consuming drugs and undergoing cultlike rituals.

Infanticide or Infanticide of Children with Disabilities: There were no reports of infanticide of children with disabilities. According to human rights activists and media outlets, including newspapers *Le Messenger*, *Mutations*, and *Nouvelle Expression*, local residents found the head of a decapitated child in a garbage bin on August 27 in the Yaounde neighborhood of Mvog Ebanda, commonly known as “Eleveur.” Investigations led to the identification of the mother of the child as the perpetrator of the crime.

Displaced Children: Many displaced children continued to live on the streets of major urban centers, although the trend was in decline as a result of stringent security measures and the amended penal code that criminalizes vagrancy. According to the International Organization for Migration, approximately 65 percent of IDPs in Far North Region were children younger than 18. These children faced many challenges, including limited access to school, health, and protection. In addition thousands of children were negatively impacted by the humanitarian crisis in the Northwest and Southwest. These children faced significant violations of their rights by armed forces and nonstate armed actors alike. The government had not established structures to ensure that internally displaced children were

protected from forceful recruitment by nonstate armed groups and terrorist organizations.

International Child Abductions: The country is not a party to the 1980 Hague

Convention on the Civil Aspects of International Child Abduction. See the

Department of State's *Annual Report on International Parental Child Abduction* at

<https://travel.state.gov/content/travel/en/International-Parental-ChildAbduction/for-providers/legal-reports-and-data.html>.

Anti-Semitism

The Jewish community was very small, and there were no known reports of anti-Semitic acts.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at

www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The constitution protects the rights of all persons, including persons with disabilities. A 2010 law provides additional protection to persons with physical, sensory, intellectual, or mental disabilities. The protections under the law cover access to education and vocational training, employment, health services, information and cultural activities, communications, buildings, sports and leisure, transportation, housing, and other state services. Public education is tuition-free

for persons with disabilities and children born of parents with disabilities. Initial vocational training, medical treatment, and employment must be provided “when possible,” and public assistance “when needed.” The government did not enforce all these provisions effectively in the past. On July 26, the prime minister issued a decree spelling out a framework for implementing the 2010 law.

There were no reports of police or other government officials inciting, perpetrating, or condoning violence against persons with disabilities during the reporting period. The majority of children with disabilities attended school with nondisabled peers. The government introduced inclusive education in many schools and reviewed the curriculum of teacher training colleges to include training in inclusive education skills. Other children with disabilities continued to attend specialized schools such as the Bulu Blind Center in Buea and the Yaounde Special School for Hearing Impaired Children (ESEDA).

National/Racial/Ethnic Minorities

The population consists of more than 275 ethnic groups. Members of the president’s Beti/Bulu ethnic group from the South Region held many key positions and were disproportionately represented in the government, state-owned businesses, and security forces.

Indigenous People

An estimated 50,000 to 100,000 Baka, including Bakola and Bagyeli, resided primarily in (and were the earliest known inhabitants of) the forested areas of the South and East Regions. The government did not effectively protect the civil or political rights of either group. Logging companies continued to destroy their naturally forested land without compensation. Other ethnic groups often treated

the Baka as inferior and sometimes subjected them to unfair and exploitative labor practices. The government continued long-standing efforts to provide birth certificates and national identity cards to Baka. Most Baka did not have these documents, and efforts to reach them were impeded by the difficulty in accessing their homes deep in the forest.

There were credible reports from NGOs that the Mbororo, itinerant pastoralists living mostly in the North, East, Adamawa, and Northwest Regions, were subject to harassment, sometimes with the complicity of administrative or judicial authorities.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Consensual same-sex sexual activity, including between adults, is illegal and punishable by a prison sentence lasting between six months and five years and a fine ranging from 20,000 to 200,000 CFA francs (\$34 to \$340).

LGBTI rights organizations such as the Cameroonian Foundation for AIDS

(CAMFAIDS), Humanity First Cameroon, Alternatives Cameroon, National Observatory of the Rights of LGBTI Persons and Their Defenders, and others reported several arrests of LGBTI persons. LGBTI individuals received anonymous threats by telephone, text message, and email, including of “corrective” rape, but authorities did not investigate allegations of harassment. Civil society members stated there were also cases where LGBTI individuals underwent corrective rape, sometimes through the facilitation of the victim’s own family. Police were generally unresponsive to requests to increase protection for lawyers who received threats because they represented LGBTI persons. Both

police and civilians reportedly continued to extort money from presumed LGBTI individuals by threatening to expose them.

The law does not explicitly prohibit discrimination against LGBTI persons in housing, employment, nationality laws, and access to government services such as health care. The constitution provides for equal rights for all citizens. In practice, however, security forces sometimes harassed persons on the basis of their real or perceived sexual orientation or gender identity, including individuals found with condoms and lubricants. This practice and the fear it generated in turn restricted access to HIV/AIDS services. Anecdotal reports also suggested some discrimination occurred in places of employment with respect to sexual orientation.

In an April 25 release, the Observatory for the Protection of Human Rights

Defenders, in partnership with the World Organization against Torture and the International Federation of Human Rights (FIDH), denounced the arrest and arbitrary detention of five staff members of the association Avenir Jeune de l'Ouest (AJO). AJO promoted the rights of LGBTI persons with HIV and sex workers in the West Region. According to the release, men in civilian clothing from the territorial police, on April 20, arrested the executive director and two other members of AJO, including a care worker, as they were leaving the organization's premises. On April 21, two additional care workers from the organization were arrested at their places of residence. Police did not have warrants and took the five members of AJO to the Dschang central police station, where they experienced poor detention conditions on charges related to consensual same-sex conduct. In connection with this incident, 18 other men were arrested. For the first time in many years, authorities in the West Region introduced the prospect of forced anal exams for the 23 arrestees. The men were ordered to undergo such exams, but after intense advocacy by the lawyer

representing the men, together with diplomatic pressure, the matter was dropped. The men did not have access to their lawyers until April 24.

In a midterm report covering the period from January to May, Alternatives Cameroon recorded 64 cases of violence against LGBTI individuals, including three cases of arbitrary detention, 30 cases of psychological violence, one case of sexual violence, 18 cases of physical violence, and 12 cases of blackmail and extortion.

HIV and AIDS Social Stigma

Persons afflicted with HIV or AIDS often suffered social discrimination and were isolated from their families and society due to social stigma and lack of education on the disease.

As in the previous year, while there were no specific cases of discrimination to highlight in employment, anecdotal reports indicated some discrimination occurred with respect to HIV status, especially in the private sector.

Other Societal Violence or Discrimination

Several cases of vigilante action and other attacks were reported during the year. Several arson attacks were recorded, involving the destruction of both public and private property. On January 21, in Nkambe, in the Donga and Mantung Division of Northwest Region, unidentified men set the dormitory section of St Rita's Secondary School on fire after the management defied the school boycott called for by separatists in the Anglophone regions.

On April 28, on the outskirts of Muyuka, Southwest Region, three gunmen on motorbikes shot and killed Sophie Mandengue Maloba, a pregnant schoolteacher. The incident occurred three days after a similar attack on a school in Kumba took place where assailants riding motorcycles shot and killed the discipline master of the government bilingual high school and chopped off three fingers of a student.

The October presidential election triggered a wave of ethnic-tinged hate speech on social media after Cameroon Renaissance Movement candidate Maurice Kamto prematurely announced he won the election. These attacks mostly split along tribal lines, with Kamto's Bamileke and President Biya's Beti ethnic groups the primary targets.

The law provides for sentences of between two and 10 years' imprisonment and fines of between 5,000 and 100,000 CFA francs (\$8.50 and \$170) for witchcraft. There were no reported arrests or trials for alleged witchcraft reported during the year.

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

The law provides for the rights of workers to form and join independent unions, bargain collectively, and conduct legal strikes. This does not apply to groups including defense and national security personnel, prison administration civil servants, and judicial and legal personnel. The law also prohibits antiunion discrimination and requires the reinstatement of workers fired for union activity.

Statutory limitations and other practices substantially restricted these rights. The law does not permit the creation of a union that includes both public- and private-sector workers or the creation of a union that includes different, even if closely related, sectors. The law requires that unions register with the government, permitting groups of no fewer than 20 workers to organize a union by submitting a constitution and by-laws; founding members must also have clean police records. The law provides for heavy fines for workers who form a union and carry out union activities without registration. More than 100 trade unions and 12 trade union confederations operated, including one public-sector confederation. Trade unions or associations of public servants may not join a foreign occupational or labor organization without prior authorization from the minister responsible for “supervising public freedoms.”

The constitution and law provide for collective bargaining between workers and management as well as between labor federations and business associations in each sector of the economy. The law does not apply to the agricultural or informal sectors, which included the majority of the workforce.

Legal strikes or lockouts may be called only after conciliation and arbitration procedures have been exhausted. Workers who ignore procedures to conduct a legal strike may be dismissed or fined. Before striking, workers must seek mediation from the Ministry of Labor and Social Security at the local, regional, and ministerial levels. Only if mediation fails at all three levels can workers formally issue a strike notice and subsequently strike. The law allowing persons to strike does not apply to civil servants, employees of the penitentiary system, or workers responsible for national security, including police, gendarmerie, and army personnel. Instead of strikes, civil servants are required to negotiate grievances directly with the minister of the appropriate department in addition to the Minister

of Labor and Social Security. Arbitration decisions are legally binding but were often unenforceable if one party refused to cooperate.

Employers guilty of antiunion discrimination are subject to fines of up to approximately one million CFA francs (\$1,700).

Free Industrial Zones are subject to labor law, except for the following provisions: the employers' right to determine salaries according to productivity, the free negotiation of work contracts, and the automatic issuance of work permits for foreign workers.

The government and employers did not effectively enforce the applicable legislation on freedom of association and the right to collective bargaining. Penalties for violations were rarely enforced and were ineffective as a deterrent. Administrative judicial procedures were infrequent and subject to lengthy delays and appeals. The government and employers often interfered in the functioning of workers' organizations. The government occasionally worked with nonrepresentative union leaders to the detriment of elected leaders, while employers frequently used hiring practices such as subcontracting to avoid hiring workers with bargaining rights. Blacklisting of union members, unfair dismissal, promotion of employer-controlled unions, and threatening workers trying to unionize were common practices.

Collective agreements are binding until after a party has given three months' notice to terminate. Workers' representatives alleged that the minister of labor and social security often negotiated collective agreements with trade unionists who had nothing to do with the sectors concerned and did not involve trade union confederations that prepared the draft agreements. Following staff representative elections conducted during the year, Syndicat National Libre des Dockers et Activites Connexes du Cameroun (Free National Union of Dockers and Related

Activities of Cameroon-SYNALIDOACC) won 14 of the 20 dockers' delegate seats, thus becoming the majority union at the Douala Sea Port, under the leadership of Voundi Ebale Jean Pierre. Oumarou Mouansie, the former dockers' spokesperson, refused to transfer leadership to the new team. The minister of labor and social security did not involve Voundi in the process leading to the new collective agreement. Unionized members of the new team alleged they were victims of discrimination by the Douala Autonomous Port (PAD) authorities, especially in terms of job assignments.

For example, the government continued to undermine the leadership of the Confederation Syndicale des Travailleurs du Cameroun (CSTC), one of the 12 trade union confederations elected in 2015, by continuing to cooperate with former leaders of the CSTC. Jean Marie Zambo Amougou, the former leader, continued to use the title "President of the CSTC" despite a January 2017 court decision ordering him to stop doing so with immediate effect. Despite the court decision, the minister of labor and social security continued to view Zambo Amougou as the official representative of the CSTC. The minister reportedly invited him to meetings and sent all CSTC correspondence to Amougou to the detriment of CSTC's legitimate leader, Andre Moussi Nolla, and other new leaders, and in spite of multiple complaints by the CSTC. The CSTC tabled the issue before the administrative court in Yaounde early in the year. During a June 15 hearing session, the administrative tribunal declined jurisdiction to hear and rule on the case.

As in 2017, trade unionists reported on officials prohibiting the establishment of trade unions in the officials' private businesses, including Fokou, Afrique Construction, Eco-Marche, and Quifferou, or otherwise hindering union operations. Some companies based in Douala II, IV, and V and in Tiko (Southwest Region),

retained 1 percent of unionized workers' salaries as union dues but refused to transfer the money to trade unions.

As in 2017, many employers frequently used hiring practices such as subcontracting to avoid hiring workers with bargaining rights. Workers' representatives stated most major companies, including parastatal companies, engaged in the practice, citing the electricity company Energy of Cameroon, the water company Camerounaise des Eaux, cement manufacturer Cimencam, Guinness, Aluminum Smelter (Alucam), and many others. Subcontracting was reported to involve all categories of personnel, from the lowest to senior levels. As a result workers with equal expertise and experience did not always enjoy similar advantages when working for the same business; subcontracted personnel typically lacked a legal basis to file complaints.

A number of strikes were announced during the year. Some were called off after successful negotiation, some were carried out without problems, while others faced some degree of repression. Workers' grievances generally involved poor working conditions, including lack of personal protective equipment, improper implementation of collective agreements, and nonpayment of salary arrears or retirement benefits. Workers also often complained of illegal termination of contracts, lack of salary increases, and failure of employers to properly register employees and pay the employer's contribution to the National Social Insurance Fund, which provides health and social security benefits.

In April 2017 the government delegate to the Douala City Council suspended 11 workers' representatives affiliated with the Wouri Divisional Union of Council Workers following a strike they held that same month. Employees of the City Council in Douala demanded health insurance for themselves and their immediate relatives. The government delegate fired the complainants but was overruled by the minister of labor and social security. The government delegate, however, did

not reinstate the employees in their positions. In February the workers staged a hunger strike requesting their reinstatement and 10 months' arrears, but the strike failed to bring about a positive outcome. On September 27, the Littoral Court of Appeals delivered a verdict requesting that the government immediately reinstate and pay the salaries of the 11 workers' representatives. The court threatened to impose a fine of 20,000 CFA francs (\$34) per day for any delay. As of midNovember, the 11 workers' representatives had not been reinstated, nor had they received their salaries following the court's decision.

Dockers from PAD staged a series of strikes on February 13, June 22, and June 25, after unsuccessful negotiations with authorities. The dockers first went on strike in May 2017 and reached a poststrike agreement with their employer, the Groupement Professionnel des Acconiers du Cameroun (GPAC), to improve working conditions. Because their employer did not fulfill promises made, the dockers went on strike again on June 22 and were dispersed with tear gas. They staged yet another strike on June 25, despite a strong deployment of security forces, to denounce what they referred to as an "advanced state of slavery" imposed by their employer. Specific grievances included the lack of salary increases, insurance coverage, family allowances, and fair distribution of work, among others. Anecdotal evidence suggested that a few striking dockers sustained injuries.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The constitution and law prohibit all forms of forced and compulsory labor. The law prohibits slavery, exploitation, and debt bondage and voids any agreement in which violence was used to obtain consent. Violations of the law are punishable by prison terms of five to 20 years and fines ranging from 10,000 to 10 million CFA francs (\$17 to \$17,000). In cases of debt bondage, penalties are doubled if the offender is also the guardian or custodian of the victim. The law also

extends culpability for all crimes to accomplices and corporate entities. Although the statutory penalties are fairly severe, the government did not enforce the law effectively, due to lack of knowledge of trafficking and limited labor inspection and remediation resources. In addition, due to the length and expense of criminal trials and the lack of protection available to victims participating in investigations, many victims of forced or compulsory labor resorted to accepting amicable settlement.

There continued to be anecdotal reports of hereditary servitude imposed on former slaves in some chiefdoms in the North Region. Many Kirdi, whose ethnic group was heavily of Christian and traditional faiths and who had been enslaved by the Muslim Fulani in the 1800s, continued to work for traditional Fulani rulers for compensation, while their children were free to pursue schooling and work of their choosing. Kirdi were also required to pay local chiefdom taxes to Fulani, as were all other subjects. The combination of low wages and high taxes, although legal, effectively constituted forced labor. While technically free to leave, many Kirdi remained in the hierarchical and authoritarian system because of a lack of viable options.

In the South and East Regions, some Baka, including children, continued to be subjected to unfair labor practices by Bantu farmers, who hired the Baka at exploitive wages to work on their farms during the harvest seasons. The NGO Mandela Center documented the case of Mohounga Paul Alias, who resided in a Baka camp, died in December 2017 after he fell from the roof of a Bantu family house in an attempt to escape from captivity.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

The law prohibits the worst forms of child labor and sets 14 as the minimum age of employment. The law prohibits children from working at night or longer than eight hours per day, it and enumerates tasks children younger than 18 cannot legally perform, including moving heavy objects, undertaking dangerous and unhealthy tasks, working in confined areas, and prostitution. Employers are required to train children between ages 14 and 18. Because compulsory education ends at age 12, children who are not in school and not yet 14 are particularly vulnerable to child labor. In addition laws relating to hazardous work for children younger than age 18 are not comprehensive, since they do not include prohibitions on work underwater or work at dangerous heights. The government, however, earmarked funds for the Ministry of Labor and Social Security to revise the hazardous work list during the year. The law provides penalties ranging from fines to imprisonment for those who violate child labor laws.

The Ministry of Social Affairs and the Ministry of Labor and Social Security are responsible for enforcing child labor laws through site inspections of registered businesses. The government did not effectively enforce the law in all sectors. Authorities did not allocate sufficient resources to support an effective inspection program. Fines were not sufficient to deter violations, and court action was often ineffective, but workers' organizations reported child labor was not a major problem in the formal sector.

The use of child labor, including forced labor, in informal sectors remained rampant. UNICEF's 2014 Multiple Indicator Cluster Survey indicated that 47 percent of children ages five to 14 were engaged in labor. Children working in agriculture frequently were involved in clearing and tilling the soil and harvesting crops, such as bananas and cocoa. In the service sector, children worked as

domestic servants and street vendors. Children, including refugee children from the Central African Republic, worked at artisanal mining sites under dangerous conditions. Children were also forced to beg by adults, often by their parents to provide additional income for the household. According to anecdotal reports, child labor, especially by refugee children, was prevalent in the building construction sector. Chinese firms based in the country also reportedly used local child labor in the manufacture of children's shoes. In March 2017 the government convened a three-day assessment of the 2014-17 Decent Work Country Program and provided training to labor inspectors, including on child labor issues. During the year the government also increased the number of labor inspectors from 132 to 286, but this number was still insufficient for the size of the workforce.

Parents viewed child labor as both a tradition and a rite of passage. Relatives often brought rural youth, especially girls, to urban areas to exploit them as domestic helpers under the pretense of allowing them to attend school. In rural areas many children began work at an early age on family farms. The cocoa industry and cattle-rearing sector also employed child laborers. These children originated, for the most part, from the Far North, North, Adamawa, West, and Northwest Regions.

The Ministry of Social Affairs, in collaboration with the Ministry of Territorial Administration and the national police, continued to implement activities to sensitize parents to the negative impact of child labor. In June authorities in Kribi, in the Ocean Division of the South Region, conducted an operation leading to the identification of at least 21 children, ages six to 13 years, who were selling items on the city's streets. Police took the children to the Kribi central police station, where they registered and held the children until they could notify the parents. Police interrogated the parents, informed them of the risks to which their children were exposed, and warned them they would be prosecuted if the children

returned to the streets. The operation was in line with a decision taken two years earlier by the senior divisional officer for Ocean Division to ban commercial activities by children in his jurisdiction.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at [www.dol.gov/ilab/reports/child – labor/findings/](http://www.dol.gov/ilab/reports/child-labor/findings/).

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

The law contains no specific provisions against discrimination, but the constitution in its preamble provides that all persons shall have equal rights and obligations and that every person shall have the right and the obligation to work.

Discrimination in employment and occupation allegedly occurred with respect to ethnicity, HIV status, disability, gender, and sexual orientation, especially in the private sector. Ethnic groups often gave preferential treatment to members of their respective ethnic group members in business and social practices, and persons with disabilities reportedly found it difficult to secure and access employment. There were no reliable reports of discrimination against internal migrant or foreign migrant workers, although anecdotal reports suggested such workers were vulnerable to unfair working conditions. The government took no action to eliminate or prevent discrimination and kept no records of incidents.

E. ACCEPTABLE CONDITIONS OF WORK

The minimum wage in all sectors is 36,270 CFA francs (\$62) per month, greater than the World Bank's international poverty line of \$1.90 per day. Premium pay for overtime ranges from 120 to 150 percent of the hourly rate, depending on the amount of overtime and whether it is weekend or late-night overtime. Despite the minimum wage law, employers often negotiated with workers for lower salaries, in part due to the extremely high rate of underemployment in the country. Salaries

lower than the minimum wage remained prevalent in the public-works sector, where many positions required unskilled labor, as well as in the domestic work sector, where female refugees were particularly vulnerable to unfair labor practices.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms and a total of 2,400 hours per year, with a maximum limit of 48 hours per week in agricultural and related activities. There are exceptions for guards and firefighters (56 hours a week), service-sector staff (45 hours), and household and restaurant staff (54 hours). The law mandates at least 24 consecutive hours of weekly rest.

The law mandates paid leave at the employer's expense at the rate of one and onehalf working days for each month of actual service. For persons younger than age 18, leave accrues at the rate of two and one-half days per month of service. A maximum of 10 days per year of paid special leave, not deductible from annual leave, is granted to workers on the occasion of immediate family events. For mothers, leave is generally increased by two working days for each child in the household younger than age six.

The government sets health and safety standards in the workplace. The minister in charge of labor issues establishes the list of occupational diseases in consultation with the National Commission on Industrial Hygiene and Safety. These regulations were not enforced in the informal sector. The labor code also mandates that every enterprise and establishment of any kind provide medical and health services for its employees. This stipulation was not enforced. By law workers may remove themselves from situations that endanger health or safety without jeopardy to their employment, but authorities did not effectively protect employees in these situations. Representatives for dockers claimed that, in the

event of an accident at work, the employer allows treatment for two months and fires the victim if he or she does not recover.

The Ministry of Labor and Social Security is responsible for national enforcement of the minimum wage and workhour standards, but it did not enforce the law. Ministry inspectors and occupational health physicians are responsible for monitoring health and safety standards, but the ministry lacked the resources for a comprehensive inspection program. Penalties were insufficient to deter violations. Although there were ministries tasked with upholding the labor laws, resources were inadequate to support their mission. For example, the city of Douala, which has six subdivisions, hundreds of companies, and thousands of employees, had only one labor inspectorate, which was generally poorly staffed.